

23STCP01745 23STCP01745

County: los-angeles

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Case Number: 23STCP01745 Hearing Date: September 3, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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ASSOCIATION FOR LOS ANGELES DEPUTY SHERIFFS,

Petitioner(s),

vs.

COUNTY

OF LOS ANGELES, et al.,

Respondent(s).

Case No.:

23STCP01745

Hearing Date:

September 3, 2026

[TENTATIVE] ORDER RE:

MOTION FOR DETERMINATION OF PREVAILING PARTY

Plaintiff/petitioner Association

for Los Angeles Deputy Sheriffs ("Petitioner") seeks a determination that it is the prevailing party and an award of costs in its action against defendants/respondents County of Los Angeles ("County"), Robert Luna ("Sheriff"), Office of the Inspector General of the County of Los Angeles ("OIG"), and Max Huntsman ("Huntsman") (collectively, "Respondent").

The Court concludes Petitioner is the prevailing party in this action, and the Court awards Petitioner costs.

I.

Background

1.

Petitioner's Claims

The Petition alleges in pertinent part as follows:

On May 22, 2023, Petitioner filed the verified Complaint and Petition ("Petition") against Respondents alleging causes of action for (1) declaratory and injunctive relief with respect to certain Petitioner-represented deputies' ("Affected Deputies") constitutional rights under the Fourth and Fifth Amendments of the United States Constitution ("Fourth Amendment" and "Fifth Amendment", respectively), as well as violation of their right to privacy under the California Constitution and the Pitchess^[1] statutes, and (2) traditional mandamus based on violations of the Meyers-Milias-Brown Act ("MMBA") and the County Employee Relations Ordinance ("ERO"). The Petition alleges in pertinent part as follows.

On May 12, 2023, the OIG sent a letter to the Affected Deputies. The letter ordered the Affected Deputies to appear for an interview concerning the presence of law enforcement gangs in LASD. The letter stated that the OIG was investigating two groups: the Banditos and the Executioners. LASD was unable to provide the OIG with a list of members and the OIG conducted a series of witness interviews to establish the membership of the Banditos and the Executioners.

The May 12, 2023 letter advised Affected Deputies that they must

appear to answer questions but could invoke the Fifth Amendment and not answer a question if they believed the response might incriminate them. The OIG reserved the right to compel a response at a later date. Any other failure to answer may affect the deputies' LASD employment or status as a peace officer. The OIG is not part of the disciplinary and certification processes, but the deputy's statements would be provided to LASD, the Commission on Peace Officer Standards and Training ("POST"), and other governmental entities as legally appropriate.

The May 12, 2023 letter set forth the core questions the OIG would ask, including if the deputy has the tattoo shown on an attached image. The deputy was requested to bring a picture of any tattoo on each leg below the knee and of any other tattoos with the symbol or image of the Banditos and the Executioners. The OIG would photograph each leg below the knee if the deputy did not bring a sufficient photograph.

On May 18, 2023, the Sheriff emailed the Affected Deputies to order their participation in the interviews described in the May 12, 2023 letter. The Sheriff's email invoked Civil Service Rule ("CSR") 18.031 and the County's Department of Human Resources Policy Procedures and Guidelines ("Guidelines") No. 910, which precludes an employee from taking any action that could interfere with an investigation. The email stated that a failure to cooperate could lead to discharge.

The Sheriff's May 18, 2023 email did not say whether the Affected Deputies would receive an admonition or otherwise receive protection under *Lybarger v. City of Los Angeles*, (1985) 40 Cal.3d 822, 829 ("Lybarger") and *Garrity v. New Jersey*, (1967) 385 U.S. 493, such that any statements made by the deputy during their interviews could not be used in a criminal action against them.

2.

Procedural History

On May 22, 2023, Petitioner filed its Petition against Respondents.

On June 2, 2023, the Court granted Petitioner's ex parte application for a temporary restraining order ("TRO") and Order to Show Cause ("OSC") re: a preliminary injunction enjoining Respondents from compelling the Affected Deputies to (1) attend an

upcoming interview regarding the OIG's investigation of law enforcement gangs and police misconduct and (2) produce photographs of certain tattoos on their bodies or subject their legs to inspections for those tattoos. The Court clarified that it granted the TRO/OSC on search and seizure/privacy, Pitchess, and labor grounds, but not the Fifth Amendment. The OSC hearing was set for June 29, 2023.

On June 29, 2023, the Court heard the OSC and took the matter under submission. On July 10, 2023, the Court granted the preliminary injunction.

On July 25, 2023, Respondent filed its Answer to the Petition.

On March 12, 2024, the Court stayed the action pending appeal. On February 28, 2025, the clerk filed the Court of Appeal's remittitur and decision affirming the preliminary injunction.

On September 30, 2025, the Court set trial for April 30, 2026. On January 15, 2026, Petitioner filed its opening brief. On March 2, 2026, Respondent filed its opposition. On March 30, 2026, Petitioner filed its reply.

On April 30, 2026, the Court heard the Petition and took the matter under submission. On May 1, 2026, the Court granted the Petition in part.

On June 11, 2026, the Court heard the OSC re: judgment and conferred with counsel regarding the outstanding legal issue of prevailing party. The Court scheduled a hearing on the instant motion for August 13, 2026, directing Petitioner to file and serve moving and supporting papers. On July 14, 2026, Petitioner filed its moving and supporting papers. On July 22, 2026, the Court on its own motion continued the instant hearing to September 3, 2026. On August 21, 2026, Respondent filed its opposition. On August 26, 2026, Petitioner filed its reply.

II.

Request for Judicial Notice

Respondent requests judicial

notice of the following exhibits: (1) Petitioner's ex parte application for TRO and OSC re: preliminary injunction and supporting memorandum filed May 31, 2023 (RJN Ex. A); (2) Petitioner's memorandum in support of the OSC re: preliminary injunction (RJN Ex. B); (3) Petitioner's reply in support of the OSC re: preliminary injunction (RJN Ex. C); (4) the Reporter's Transcript of Hearing for the OSC re: preliminary injunction heard June 29, 2024 (RJN Ex. D).

The Court need not take judicial notice of Requests 1-3 as they are already on file with the Court in this matter. Request 4 for the reporter's transcript is granted. (Evid. Code § 452(d).)

III.

Discussion

Code of Civil Procedure ("CCP")
section 1032, subdivision (a)(4), provides:

"¿'Prevailing party' includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not " (CCP § 1032(a)(4).)

Petitioner obtained non-monetary relief, in the form of a partial grant of its mandamus action. Consequently, the Court must determine the prevailing party. (CCP § 1032(a)(4).)

1.

Petitioner Is the Prevailing Party

Petitioner seeks a determination that it is the prevailing party pursuant to CCP section 1032.

As both Petitioner and Respondent acknowledge, the Court must evaluate which party achieved their litigation objectives. (Mem. at 9-10, citing *Friends of Spring St. v. Nev. City*

(2019) 33 Cal.App.5th 1092, 1104-05 [“Friends of Spring St.”]; Opp. at 7, citing Lafayette Bollinger Development LLC v. Town of Moraga (2023) 93 Cal.App.5th 752, 787, On-Line Power v. Mazur (2007) 149 Cal.App.4th 1079, 1087.) In other words, the Court does not look to the number of legal theories on which each side prevailed, but rather to whether Petitioner substantially obtained the relief it sought. (Friends of Spring St. at 1104-05 [finding plaintiff prevailed because the court set aside an adverse agency decision despite only obtaining relief on one of five causes of action]; Harbor v. Deukmejian (1987) 43 Cal.3d 1078 [Petitioners were the successful party under CCP section 1021.5 because, as they sought, the court ruled the governor could not veto a portion of a bill which was not part of an appropriation bill]; Planned Parenthood v. Aakhus (1993) 14 Cal.App.4th 162 [respondent sued to stop appellants from entering onto its property and confronting its patrons, and appellants were so enjoined].) Courts have found that a party may be the prevailing party for achieving success “on any significant issue” and achieve “some of the benefit” originally sought. (Maria P. v. Riles (1987) 43 Cal.3d 1281, 1292 [“Riles”].)

Petitioner argues it primarily sought to prevent the OIG from conducting the planned interviews without affording the Affected Deputies the right against self-incrimination or Lybarger admonitions. (Mem. at 10.) Respondent argues Petitioner in fact sought to prevent the interviews entirely, noting Petitioner also brought the action under privacy rights and the Pitchess statutes. (Opp. at 8.)

First, Petitioner succeeded in obtaining Fifth Amendment protections against self-incrimination. Although Respondent disputes whether this was Petitioner’s “primary objective,” those protections were plainly a “significant issue,” and Petitioner achieved “some of the benefit sought” in both its Petition and opening brief. (See Pet., ¶¶ 17-19, 37, pp. 20-22; Pet. Op. Br. at 7, 9-12.) This success alone could support a prevailing-party determination. (Riles, supra, 43 Cal.3d at 1292.)

Second, the Court finds Petitioner’s characterization of its objectives credible. While Petitioner did seek to halt the interviews entirely, the Petition and opening brief repeatedly highlighted the criminal law implications of compelled statements. (Pet. at 6-8; Pet. Op. Br. at 9-12.) Petitioner obtained relief preventing Respondent from proceeding in a manner that risked violating the Affected Deputies’ right

against self-incrimination. Given the pleadings and briefing, it is reasonable to conclude that concerns about compelled self-incrimination were central to Petitioner's litigation objectives. Additionally, as Petitioner notes and Respondent does not dispute, Respondent agreed to bargain with Petitioner as a result of the action, which constitutes additional relief. (See *Westside Community for Independent Living, Inc. v. Obledo* (1983) 33 Cal.3d 348, 352-53 [whether relief is obtained through settlement or other voluntary action by defendant is immaterial as long as relief was obtained], citing *Northington v. Davis* (1979) 23 Cal.3d 955, *Fletcher v. A.J. Industries, Inc.* (1968) 266 Cal.App.2d 313, *Sullivan v. Com. of Pa. Dept. of Labor, Etc.* (3d Cir.1981) 663 F.2d 443, *Robinson v. Kimbrough* (5th Cir.1981) 652 F.2d 458, *American Constitutional Party v. Munro* (9th Cir.1981) 650 F.2d 184.)) The record also suggests Respondent voluntarily narrowed its tattoo-disclosure demands, potentially reflecting partial success on Petitioner's Fourth Amendment arguments. (Order Granting Writ of Mandate in Part (May 1, 2026) at p. 22.)

Respondent contends that Petitioner's privacy-based claims (Fourth Amendment, Pitchess) are inconsistent with its present position that concerns over self-incrimination were paramount. The Court is not persuaded. Litigants frequently advance multiple legal theories in pursuit of the same practical relief, and their motivations need not perfectly align with the elements of each theory.

In summary: (1) Petitioner prevailed on the requirement for Lybarger admonitions; (2) Petitioner prevailed on Fifth Amendment protections concerning tattoo disclosure; (3) Respondent prevailed on the Pitchess issue; (4) Respondent prevailed on Fourth Amendment and California constitutional privacy issues, though only after narrowing its demands; and (5) Respondent conceded the bargaining issue prior to filing its opposition.

The Court concludes Petitioner substantially achieved its litigation objectives, as the interviews may proceed only on a reduced basis, with Lybarger admonitions, and after bargaining. Even if Petitioner had not substantially achieved its litigation objectives, it prevailed on the significant Fifth Amendment legal issue and thus obtained part of the relief originally sought. Accordingly, the Court finds Petitioner is the prevailing party under CCP section 1032.

2.

The Court Awards Petitioner Costs

Petitioner seeks an award of costs under CCP section 1032, asserting that it is entitled to costs as a matter of right under subdivision (b). Petitioner is incorrect. CCP section 1032, subdivision (a)(4), expressly provides that when, as here, a party obtains nonmonetary relief, the Court must determine the prevailing party, and “under those circumstances, the court, in its discretion, may allow costs or not.” (CCP § 1032(a)(4).) The Court therefore has discretion to award or deny costs. Petitioner further contends it would be an abuse of discretion for the Court to decline to award costs but offers no authority supporting that position.

Nonetheless, the Court concludes Petitioner should recover costs because Petitioner was broadly successful in achieving its objectives.

Respondent requests that the Court either deny costs or award only a narrowly apportioned amount, arguing that the Petition involved close legal questions and that both parties obtained significant victories. As discussed above, however, the interviews may now proceed only in reduced scope, with Lybarger admonitions, and after bargaining. This matter does not resemble *Lincoln v. Schurgin* (1995) 39 Cal.App.4th 100 (“*Lincoln*”), where defendants prevailed on a declaration that no partnership existed, but plaintiffs obtained monetary relief. (*Lincoln* at 106.) Here, Respondent either retreated, conceded, or did not prevail on every issue except the Pitchess claim.

Nor does this case resemble *Texas Commerce Bank v. Garamendi* (1994) 28 Cal.App.4th 1234 (“*Texas Commerce Bank*”), which Respondent characterizes as denying costs because the action ultimately turned on a close question of law. (Opp. at 9.) In fact, the trial court in that case declined costs because counsel pursued extensive discovery and expert work despite the matter plainly turning on a legal issue from the outset, and those unnecessary efforts comprised the bulk of the costs sought. (*Texas Commerce Bank* at 1238-39.) Moreover, the reviewing court reversed on other grounds and did not analyze the portion of the trial court’s decision concerning costs. (Id. at 1249.)

Because the Court finds

Petitioner was largely successful in its objectives, and as Respondent raises no valid grounds for denying or apportioning costs, the Court awards costs to Petitioner.

IV.

Conclusion

The Court concludes Petitioner is the prevailing party in this action, and the Court awards costs to Petitioner.

Date: September 3, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the Court at SMCDEPT834@lacourt.ca.gov with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the Court may take the matter off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of

the matter without leave.

[1]

Evidence Code sections 1043-1047 and Penal Code sections 832.7-832.8 are commonly referred to as the Pitchess statutes, after Pitchess v. Superior Court (1974) 11 Cal.3d 531. Likewise, motions under the Pitchess statutes are commonly called Pitchess motions. (See e.g. Long Beach Police Officers Assn. v. City of Long Beach (2014) 59 Cal.4th 59, 67-68.)